

DARPA has provided the model OT as an opportunity for proposer to suggest edits for consideration. The model OT is representative of the general terms and conditions that DARPA intends to include in any awards, **however final terms and conditions will be specific to each award and will vary from the model provided here.**

Proposers may suggest edits to the model OT for consideration by DARPA and provide a copy of the model OT with track changes as part of their proposal package. **Proposed changes to the model OT will not be evaluated.** Any changes suggested should be commensurate with the technical approach, milestones, and deliverables proposed. It is required that Proposers include comments providing rationale for any suggested edits of a non-administrative nature. Suggested edits may be rejected at DARPA's discretion.

Performer must track any requested OT Article changes and complete all blue sections of Agreement.

****DARPA will complete all sections in brown/red**

****Performer must track any requested OT Article changes and complete all blue sections of Agreement.**

****Performer must track any requested OT Article changes and complete all blue sections of Agreement**

OTHER TRANSACTION FOR RESEARCH

BETWEEN

ISSAC D DAVIS / SCBE-AETHERMOORE, 2361 E 5th Ave, Port Angeles, WA 98362

AND

**THE DEFENSE ADVANCED RESEARCH PROJECTS AGENCY
675 NORTH RANDOLPH STREET
ARLINGTON, VA 22203-1714**

CONCERNING

a SCBE mathematical framework for governing multi-agent AI communication protocols using a composed Poincare-ball operator with five physical axioms (Unitarity, Locality, Causality, Symmetry, Composition)

Agreement No.: **HR0011-XX-3-XXXX**

Purchase Requisition No.: **XXXXXXXXXXXXXXXXXX**

Total Amount of the Agreement: **\$(INCLUDES GOVERNMENT ONLY FUNDING)**

Funds Obligated: **\$XXXXXXXXXXXXXXXXXX**

Authority: 10 U.S.C. § 4021

Effective Date: Date Signed by Government

Line(s) of Appropriation:

CLIN/SUBCLIN	ACRN	Accounting Line	CIN	Amount
0001/000101	AA			\$

This Agreement is entered into between the United States of America, hereinafter called the Government, represented by The Defense Advanced Research Projects Agency (DARPA), and the **ISSAC D DAVIS / SCBE-AETHERMOORE** pursuant to and under United States Federal law. Note that by signing this Agreement, ISSAC D DAVIS / SCBE-AETHERMOORE also attests to the accuracy and completion of the Certifications of the Agreement herein Attachment **5**, Certifications for Agreement.

FOR **ISSAC D DAVIS / SCBE-AETHERMOORE**

FOR THE GOVERNMENT
DEFENSE ADVANCED RESEARCH PROJECTS
AGENCY

(Signature)

(Signature)

(Name, Title)

(Date)

(Name, Title)

(Date)

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ARTICLE 1: SCOPE OF THE AGREEMENT

A. Background

THIS PARAGRAPH(S) DESCRIBES THE VISION OF THE PROGRAM AND SHOULD ANSWER THE FOLLOWING QUESTIONS:

- WHAT IS THE PURPOSE OF THE AGREEMENT?
- WHAT IS THE CURRENT TECHNOLOGICAL SITUATION?
- WHAT MAKES THIS PROGRAM A “CRITICAL TECHNOLOGY” EFFORT?
- WHY IS THE CURRENT TECHNOLOGY NOT SUFFICIENT?
- WHY IS IT NECESSARY FOR THE GOVERNMENT TO SUPPORT INDUSTRY IN ADDRESSING THIS SITUATION?
- WHAT ARE THE ISSUES OF PARTICULAR IMPORTANCE TO DARPA?
- WHAT ARE THE DUAL-USE (MILITARY AND COMMERCIAL) APPLICATIONS?
- WHAT IS THE MARKET POTENTIAL?
- WHAT ARE THE COMMERCIALIZATION GOALS?
- IF THE PROGRAM IS SUCCESSFUL, THEN WHAT? WHERE DO WE GO FROM HERE?
- IF THIS COLLABORATION IS SUCCESSFUL, WHAT WILL WE HAVE ACCOMPLISHED?

B. Definitions

In this Agreement, the following definitions apply:

Agreement: The body of this Agreement and Attachments 1-X, which are expressly incorporated in and made a part of the Agreement.

Algorithm: A clearly specified mathematical process for computation; a set of rules that, if followed, will give a prescribed result.

Data: Recorded information, regardless of form or method of recording, which includes but is not limited to, technical data, software, and trade secrets. The term does not include financial, administrative, cost, pricing or management information and does not include subject inventions, included in Article 7.

Foreign Firm or Institution: A firm or institution organized or existing under the laws of a country other than the United States, its territories, or possessions. The term includes, for purposes of this Agreement, any agency or instrumentality of a foreign government; and firms, institutions or business organizations which are owned or substantially controlled by foreign governments, firms, institutions, or individuals.

Government: The United States of America, as represented by DARPA.

Government Purpose Rights: The rights to use, duplicate, or disclose Data, in whole or in part and in any manner, for Government purposes only, and to have or permit others to do so for Government purposes only.

Invention: Any invention or discovery which is or may be patentable or otherwise protectable under Title 35 of the United States Code.

Know-How: All information including, but not limited to discoveries, formulas, materials, inventions, processes, ideas, approaches, concepts, techniques, methods, software, programs, documentation, procedures, firmware, hardware, technical data, specifications, devices, apparatus and machines.

Limited Rights: Rights to use, modify, reproduce, release, perform, display, or disclose Data, in whole or in part, within the Government.

Made: Any invention means the conception or first actual reduction to practice of such invention.

Party: Includes the Government (represented by DARPA), or the Performer, or both.

Performer: **PERFORMER NAME**

Practical application: To manufacture, in the case of a composition of product; to practice, in the case of a process or method, or to operate, in the case of a machine or system; and, in each case, under such conditions as to establish that the invention is capable of being utilized and that its benefits are, to the extent permitted by law or Government regulations, available to the public on reasonable terms.

Program: Research and development being conducted by the Performer, as set forth in Article 1, Paragraph C.

Property: Any tangible personal property other than property actually consumed during the execution of work under this agreement.

Subject invention: Any invention conceived or first actually reduced to practice in the performance of work under this Agreement.

Technology: Discoveries, innovations, Know-How and inventions, whether patentable or not, including computer software, recognized under U.S. law as intellectual creations to which rights of ownership accrue, including, but not limited to, patents, trade secrets, and copyrights developed under this Agreement.

Unlimited Rights: Rights to use, duplicate, release, or disclose, Data in whole or in part, in any manner and for any purposes whatsoever, and to have or permit others to do so.

C. Scope

1. The Performer shall perform a coordinated research and development program (Program) designed to develop a SCBE mathematical framework for governing multi-agent AI communication protocols using a composed Poincare-ball operator with five physical axioms (Unitarity, Locality, Causality, Symmetry, Composition). The research shall be carried out in accordance with Attachment 1, the Task Description Document (TDD). The Performer shall submit or otherwise provide all documentation required by Attachment 2, Report Requirements.
2. The Performer shall be paid a fixed amount for each milestone accomplished in accordance with Attachment 3, Schedule of Milestones and Payments and the procedures of Article 5. The Schedule of Milestones and Payments may be revised or updated in accordance with Article 3.

D. Goals/Objectives

1. The goal of this Agreement is develop a mathematically rigorous framework for governing multi-agent AI communication protocols using a composed Poincare-ball operator with five physical axioms, demonstrated on NMR spectroscopy task families, producing certified convergence bounds, a protocol coherence drift index (CDPTI), and a computational design tool for applying the framework to new scientific subdomains.

2. The Government will have continuous involvement with the Performer. The Government will also obtain access to research results and certain rights in patents and data pursuant to Articles 7 and 8. DARPA and the Performer are bound to each other by a duty of good faith and best research effort in achieving the goals of the Program.
3. This Agreement is an “other transaction” pursuant to 10 U.S.C. § 4021. The Parties agree that the principal purpose of this Agreement is for the Government and the Performer to provide for a coordinated effort to advance research and technology goals of the program and not primarily for the acquisition of property or services for the direct benefit or use of the Government. This Agreement is not intended to be, nor shall it be construed as, by implication or otherwise, a partnership, a corporation, or other business organization.

ARTICLE 2: TERM

A. Term of this Agreement

The Program commences upon the date of the last signature hereon and continues for 16 (sixteen) months. Provisions of this Agreement, which, by their express terms or by necessary implication, apply for periods of time other than specified herein, shall be given effect, notwithstanding this Article.

B. Termination Provisions

(Use if the performers are providing cost (resource) share)

Subject to a reasonable determination that the program will not produce beneficial results, either Party may terminate this Agreement by written notice to the other Party, provided that such written notice is preceded by consultation between the Parties. In the event of a termination of the Agreement, it is agreed that disposition of Data developed under this Agreement, shall be in accordance with the provisions set forth in Article 8, Data Rights. The Government and the Performer will negotiate in good faith a reasonable and timely adjustment of all outstanding issues between the Parties as a result of termination. Failure of the Parties to agree to a reasonable adjustment will be resolved pursuant to Article 7, Disputes. The Government has no obligation to pay the Performer beyond the last completed and paid milestone if the Performer decides to terminate.

OR

(Use if the performers are NOT providing cost (resource) share)

The Government may terminate this Agreement by written notice to the Performer, provided that such written notice is preceded by consultation between the Parties. The Performer may request Agreement termination by giving the Government sixty (60) days written notification of their intent to do so. If the Performer decides to request termination of this Agreement, the Government may, at its discretion, agree to terminate. The Government and the Performer should negotiate in good faith a reasonable and timely adjustment of all outstanding issues between the Parties as a result of termination, which may include non-cancelable commitments. In the event of a termination of the Agreement, the Government shall have paid-up rights in Data as described in Article 8, Data Rights. Failure of the Parties to agree to an equitable adjustment shall be resolved pursuant to Article 6, Disputes.

C. Extending the Term

The Parties may extend by mutual written agreement the term of this Agreement if research opportunities within the vision statement set forth in Article 1 reasonably warrant. Any extension shall be formalized through modification of the Agreement by the Agreements Officer (AO) and the Performer's Administrator.

ARTICLE 3: MANAGEMENT OF THE PROJECT

A. Management and Program Structure

The Performer shall be responsible for the overall technical and program management of the Program, and technical planning and execution shall remain with the Performer. The DARPA Agreements Officer's Representative (AOR) shall provide recommendations to Program developments and technical collaboration and be responsible for the review and verification of milestones.

B. Program Management Planning Process

Program planning will consist of an Annual Program Plan with inputs and reviews from the Performer and DARPA management, containing a detailed schedule of research activities and milestones.

1. Initial Program Plan: The Performer will follow the initial program plan that is contained in Attachment 1, TDD and Attachment 3, the Schedule of Milestones and Payments.
2. Overall Program Plan Annual Review
 - a. The Performer, with DARPA PM participation and review, will prepare an overall Annual Program Plan in the first quarter of each Agreement year (for this purpose, each consecutive twelve (12) month period from (and including) the month of execution of this Agreement during which this Agreement shall remain in effect shall be considered an "Agreement Year"). The Annual Program Plan may be presented and reviewed at an annual site review, at the discretion of the DARPA PM, which will be attended by the Performer's Management, the DARPA AOR, Senior DARPA management or other DARPA program managers and personnel as appropriate. The Performer, with DARPA participation and review, will prepare a final Annual Program Plan.
 - b. The Annual Program Plan provides a detailed schedule of research activities, commits the Performer to meet specific performance objectives and describes the milestones. The Annual Program Plan will consolidate all prior adjustments in the research schedule, including revisions/modifications to prospective milestones. Recommendations for changes and technical revisions or modifications to the Agreement which result from the Annual Review shall be made in accordance with the provisions of Article 3, Paragraph C.

C. Modifications

1. As a result of meetings, annual reviews, or at any time during the term of the Agreement, research progress or results may indicate that a change in the TDD would be beneficial to program objectives. Recommendations for modifications, including justifications to support any changes to the TDD and prospective milestones, will be documented and submitted by the Performer to the DARPA PM and AOR with a copy to the DARPA AO. This documentation will detail the technical, chronological, and financial impact of the proposed modification to the research program. The Performer shall approve any Agreement modification. The Government is not obligated to pay for additional or revised future milestones until Attachment 3 is formally revised by the DARPA AO and made part of this Agreement.

2. The DARPA AOR shall be responsible for the review and verification of any recommendations to revise or otherwise modify the Agreement TDD, Schedule of Milestones and Payments, or other proposed changes to the terms and conditions of this Agreement.
3. For minor or administrative Agreement modifications (e.g. changes in the paying office or appropriation data, changes to Government or the Performer's personnel identified in the Agreement, etc.) no signature is required by the Performer.
4. The DARPA AO will be responsible for instituting all modifications to this Agreement.

ARTICLE 4: AGREEMENT ADMINISTRATION

Unless otherwise provided in this Agreement, approvals permitted or required to be made by DARPA may be made only by the DARPA AO. Administrative and contractual matters under this Agreement shall be referred to the following representatives of the parties:

A. Government Points of Contact:

Agreements Officer (AO):
(NAME)
Phone Number:
Email:

DARPA Program Manager (PM):
(NAME)
Phone Number:
Email:

Agreements Officer's Representative (AOR):
(NAME)
Phone Number:
Email:

B. Performer's Points of Contact

Administrative/Contracting:
(NAME)
(TITLE)
Phone Number:
Email:

Program Manager:
(NAME)
(TITLE)
Phone Number:
Email:

ARTICLE 5: OBLIGATION AND PAYMENT

A. Obligation

The Government's liability to make payments to the Performer is limited to only those funds obligated under this Agreement or by modification to the Agreement. DARPA may incrementally fund this Agreement.

B. Payments

1. The Parties agree that fixed payments will be made for the completion of milestones. These payments reflect value received by the Government toward the accomplishment of the research goals of this Agreement.
2. The Performer has and agrees to maintain an established accounting system which complies with Generally Accepted Accounting Principles and with the requirements of this Agreement.
3. The Performer shall document the accomplishments of each milestone by submitting or otherwise providing the Milestones Report required by Attachment 3. To the maximum extent practicable, the DARPA AOR shall review the deliverable(s)/milestone report(s) and either: 1) provide a written notice of rejection to the Performer which includes feedback regarding deficiencies requiring correction, or 2) written notice of acceptance to the DARPA PM, AO, and Performer within fifteen (15) calendar days of receipt of deliverable(s)/milestone report(s). Upon written approval from the DARPA AOR, the Performer will submit their invoice through Wide Area Workflow (WAWF), as detailed below.
4. Payments will be made by the Defense Agency Financial Services office, as indicated below, within thirty (30) calendar days of an accepted invoice in WAWF. WAWF is a secure web-based system for electronic invoicing, receipt and acceptance. The WAWF application enables electronic form submission of invoices, government inspection, and acceptance documents in order to support DoD's goal of moving to a paperless acquisition process. Authorized DoD users are notified of pending actions by e-mail and are presented with a collection of documents required to process the contracting or financial action. It uses Public Key Infrastructure (PKI) to electronically bind the digital signature to provide non-refutable proof that the user (electronically) signed the document with the contents. Benefits include online access and full spectrum view of document status, minimized re-keying and improving data accuracy, eliminating unmatched disbursements and making all documentation required for payment easily accessible.
5. The Performer is required to utilize the WAWF system when processing invoices and receiving reports under this Agreement. The Performer shall (i) ensure an Electronic Business Point of Contact is designated in System for Award Management at <http://www.sam.gov> and (ii) register to use WAWF-RA at the <https://wawf.eb.mil> site, within ten (10) calendar days after award of this Agreement. Step by Step procedures to register are available at the <https://wawf.eb.mil> site. The Performer is directed to use the "2-in-1" format when processing invoices. The Performer shall maintain an active registration for "All Awards" in System for Award Management (SAM) throughout the life of the award. For WAWF Payment and Invoicing Support, email DARPAInvoices@darpa.mil or contact WAWF help desk at 866-618-5988 or email disa.global.servicedesk.mbx.eb-ticket-requests@mail.mil.
 - a. For the Issue By DoDAAC, enter **HR0011**. Extension (**INSERT AO'S EXTENSION**).
 - b. For the Admin DoDAAC, enter **HR0011**.
 - c. For the Service Acceptor AOR fields, enter (**the Service Acceptor AOR DoDAAC**).

- d. Leave the Inspect by DoDAAC, Ship From Code DoDAAC, Service Approver, and LPO DoDAAC fields blank unless otherwise directed by the Agreements Officer.
- e. The following guidance is provided for invoicing processed under this Agreement through WAWF:
 - Acceptance within the WAWF system shall be performed by the **AOR or AO (choose one)** upon receipt of a confirmation email, or other form of transmittal, from the AOR.
 - The Performer shall upload the AOR approval as an attachment upon submission of an invoice in WAWF.
 - Payments shall be made by DFAS-**(INSERT APPROPRIATE DFAS OFFICE)**.
 - The Performer agrees, when entering invoices entered in WAWF to utilize the CLINs associated with each milestone as delineated at Attachment **3**. The description of the CLIN shall include reference to the associated milestone number along with other necessary descriptive information. The Performer agrees that the Government may reject invoices not submitted in accordance with this provision.

Note for DFAS: The Agreement shall be entered into the DFAS system by CLIN – Milestone association (MS)/ACRN as delineated at Attachment **3. The Agreement is to be paid out by CLIN (MS)/ACRN. Payments shall be made using the CLIN (MS)/ACRN association as delineated at Attachment **3**.**

- f. Payee Information: As identified at the System for Award Management.
 - Cage Code: **1EXD5**
 - SAM UEI: **J4NXHM6N5F59**
 - TIN: **[TIN — ENTER DIRECTLY IN FINAL SIGNED DOCUMENT; DO NOT ADD TO REPO]**

6. Payments shall be made in the amounts set forth in Attachment **3**, provided the DARPA AOR has verified the accomplishment of the milestones.
7. Limitation of Funds: In no case shall the Government's financial liability exceed the amount obligated under this Agreement.
8. Financial Records and Reports: The Performer shall maintain adequate records to account for all funding under this Agreement. Upon completion or termination of this Agreement, whichever occurs earlier, the Performer shall furnish a copy of the Final Report required by Attachment **2**, Part F. The Performer's relevant financial records are subject to examination or audit on behalf of DARPA by the Government for a period not to exceed three (3) years after expiration of the term of this Agreement. The AO or designee shall have direct access to sufficient records and information of the Performer, to ensure full accountability for all funding under this Agreement. Such audit, examination, or access shall be performed during business hours on business days upon prior written notice and shall be subject to the security requirements of the audited party.

ARTICLE 6: DISPUTES

A. General

The Parties shall communicate with one another in good faith and in a timely and cooperative manner when raising issues under this Article.

B. Dispute Resolution Procedures

1. Any disagreement, claim or dispute between DARPA and the Performer concerning questions of fact or law arising from or in connection with this Agreement, and, whether or not involving an alleged breach of this Agreement, may be raised only under this Article.
2. Whenever disputes, disagreements, or misunderstandings arise, the Parties shall attempt to resolve the issue(s) involved by discussion and mutual agreement as soon as practicable. In no event shall a dispute, disagreement or misunderstanding which arose more than three (3) months prior to the notification made under Subparagraph B.3 of this Article constitute the basis for relief under this Article unless the Director of DARPA in the interests of justice waives this requirement.
3. Failing resolution by mutual agreement, the aggrieved Party shall document the dispute, disagreement, or misunderstanding by notifying the other Party (through the DARPA AO or the Performer's Administrator, as the case may be) in writing of the relevant facts, identify unresolved issues, and specify the clarification or remedy sought. Within five (5) working days after providing notice to the other Party, the aggrieved Party may, in writing, request a joint decision by the DARPA Senior Procurement Executive, and senior executive (no lower than **Principal Investigator (sole proprietor; no higher organizational authority applies)** level) appointed by the Performer. The other Party shall submit a written position on the matter(s) in dispute within thirty (30) calendar days after being notified that a decision has been requested. DARPA Senior Procurement Executive, and the senior executive shall conduct a review of the matter(s) in dispute and render a decision in writing within thirty (30) calendar days of receipt of such written position. Any such joint decision is final and binding.
4. In the absence of a joint decision, upon written request to the Deputy Director of DARPA, made within thirty (30) calendar days of the expiration of the time for a decision under Subparagraph B.3 above, the dispute shall be further reviewed. The Deputy Director of DARPA may elect to conduct this review personally or through a designee or jointly with a senior executive (no lower than **Principal Investigator (sole proprietor; no higher organizational authority applies)** level (**The senior POC in paragraph 4 must be at least 1 level higher than the senior POC being referenced within paragraph 3.**) appointed by the Performer. Following the review, the Deputy Director of DARPA or designee will resolve the issue(s) and notify the Parties in writing. Such resolution is not subject to further administrative review by the Director of DARPA, whose decision to the extent permitted by law shall be final and binding.

C. Limitation of Damages

Claims for damages of any nature whatsoever pursued under this Agreement shall be limited to direct damages only up to the aggregate amount of DARPA funding disbursed as of the time the dispute arises. In no event shall DARPA be liable for claims for consequential, punitive, special and incidental damages, claims for lost profits, or other indirect damages.

ARTICLE 7: PATENT RIGHTS

A. Allocation of Principal Rights

1. Unless the Performer shall have notified DARPA, in accordance with Subparagraph B.2 below, that the Performer does not intend to retain title, the Performer shall retain the entire right, title, and interest throughout the world to each subject invention consistent with the provisions of this Article.

2. With respect to any subject invention in which the Performer retains title, DARPA shall have a nonexclusive, nontransferable, irrevocable, paid-up license to practice or have practiced on behalf of the United States the subject invention throughout the world.

B. Invention Disclosure, Election of Title, and Filing of Patent Application

1. The Performer shall disclose each subject invention to DARPA within four (4) months after the inventor discloses it in writing to their company personnel responsible for patent matters. The disclosure to DARPA shall be in the form of a written report and shall identify the Agreement and circumstances under which the invention was made and the identity of the inventor(s). It shall be sufficiently complete in technical detail to convey a clear understanding, to the extent known at the time of the disclosure, of the nature, purpose, operation, and the physical, chemical, biological, or electrical characteristics of the Invention. The disclosure shall also identify any publication, sale, or public use of the invention and whether a manuscript describing the invention has been submitted and/or accepted for publication at the time of disclosure.
2. If the Performer determines that it does not intend to retain title to any such Invention, the Performer shall notify DARPA, in writing, within eight (8) months of disclosure to DARPA. However, in any case where publication, sale, or public use has initiated the one (1) year statutory period wherein valid patent protection can still be obtained in the United States, the period for such notice may be shortened by DARPA to a date that is no more than sixty (60) calendar days prior to the end of the statutory period.
3. The Performer shall file its initial patent application on a subject invention to which it elects to retain title within one (1) year after election of title or, if earlier, prior to the end of the statutory period wherein valid patent protection can be obtained in the United States after a publication, or sale, or public use. The Performer may elect to file patent applications in additional countries (including the European Patent Office and the Patent Cooperation Treaty) within either ten (10) months of the corresponding initial patent application or six (6) months from the date permission is granted by the Commissioner of Patents and Trademarks to file foreign patent applications, where such filing has been prohibited by a Secrecy Order.
4. The Performer shall notify DARPA of any decisions not to continue the prosecution of a patent application, pay maintenance fees, or defend in a reexamination or opposition proceedings on a patent, in any country, not less than thirty (30) calendar days before the expiration of the response period required by the relevant patent office.
5. Requests for extension of the time for disclosure election, and filing under this Article, may be granted at DARPA's discretion after considering the circumstances of the Performer and the overall effect of the extension.
6. The Performer shall submit to DARPA annual listings of subject inventions. At the completion of the Agreement, the Performer shall submit a comprehensive listing of all subject inventions identified during the course of the Agreement and the current status of each.

C. Conditions When the Government May Obtain Title

Upon DARPA's written request, the Performer shall convey title to any subject invention to DARPA under any of the following conditions:

1. If the Performer fails to disclose or elects not to retain title to the subject invention within the times specified in Paragraph B of this Article; however, DARPA may only request title within sixty (60) calendar days after learning of the failure of the Performer to disclose or elect within the specified times;
2. In those countries in which the Performer fails to file patent applications within the times specified in Paragraph B of this Article; however, if the Performer has filed a patent application in a country after the times specified in Paragraph B of this Article, but prior to its receipt of the written request by DARPA, the Performer shall continue to retain title in that country; or
3. In any country in which the Performer decides not to continue the prosecution of any application for, to pay the maintenance fees on, or defend in reexamination or opposition proceedings on, a patent on a subject invention.

D. Minimum Rights to the Performer and Protection of the Performer's Right to File

1. The Performer shall retain a nonexclusive, royalty-free license throughout the world in each subject invention to which the Government obtains title, except if the Performer fails to disclose the subject invention within the times specified in Paragraph B of this Article. The Performer's license extends to its domestic (including Canada) subsidiaries and affiliates, if any, and includes the right to grant licenses of the same scope to the extent that the Performer was legally obligated to do so at the time the Agreement was awarded. The license is transferable only with the approval of DARPA, except when transferred to the successor of that part of the business to which the subject invention pertains. DARPA approval for license transfer shall not be unreasonably withheld.
2. The Performer's domestic license may be revoked or modified by DARPA to the extent necessary to achieve expeditious practical application of the Subject Invention pursuant to an application for an exclusive license submitted consistent with appropriate provisions at 37 CFR Part 404. This license shall not be revoked in that field of use or the geographical areas in which the Performer has achieved practical application and continues to make the benefits of the subject invention reasonably accessible to the public. The license in any foreign country may be revoked or modified at the discretion of DARPA to the extent the Performer, its licensees, or the subsidiaries or affiliates have failed to achieve practical application in that foreign country.
3. Before revocation or modification of the license, DARPA shall furnish the Performer a written notice of its intention to revoke or modify the license, and the Performer shall be allowed thirty (30) calendar days (or such other time as may be authorized for good cause shown) after the notice to show cause why the license should not be revoked or modified.

E. Action to Protect the Government's Interest

1. The Performer agrees to execute or to have executed and promptly deliver to DARPA all instruments necessary to (i) establish or confirm the rights the Government has throughout the world in those subject inventions to which the Performer elects to retain title, and (ii) convey title to DARPA when requested under Paragraph C of this Article and to enable the Government to obtain patent protection throughout the world in that subject invention.
2. The Performer agrees to require by written agreement with its employees, other than clerical and non-technical employees, to disclose promptly in writing to personnel identified as responsible for the administration of patent matters and in a format suggested by the Performer each subject invention made under this Agreement in order that the Performer can comply with

the disclosure provisions of Paragraph B of this Article. The Performer shall instruct employees, through employee agreements or other suitable educational programs, on the importance of reporting inventions in sufficient time to permit the filing of patent applications prior to U.S. or foreign statutory bars.

3. The Performer shall include, within the specification of any United States patent application and any patent issuing thereon covering a subject invention, the following statement:

This invention was made with Government support under Agreement No. **HR0011-XX-3-XXXX**, awarded by DARPA. The Government has certain rights in the invention.

F. Lower Tier Agreements

The Performer shall include this Article, suitably modified, in all subcontracts or lower tier agreements, regardless of tier, for experimental, developmental, or research work.

G. Reporting on Utilization of Subject Inventions

1. The Performer agrees to submit, during the term of the Agreement, an annual report on the utilization of a subject invention or on efforts at obtaining such utilization that are being made by the Performer or its licensees or assignees. Such reports shall include information regarding the status of development, date of first commercial sale or use, gross royalties received by the Performer, and such other data and information as the agency may reasonably specify. The Performer also agrees to provide additional reports as may be requested by DARPA in connection with any march-in proceedings undertaken by DARPA in accordance with Paragraph 1 of this Article. DARPA agrees it shall not disclose such information to persons outside the Government without permission of the Performer, unless required by law.
2. All required reporting shall be accomplished, to the extent possible, using the i-Edison reporting website: <https://www.nist.gov/iedison>. To the extent any such reporting cannot be carried out by use of i-Edison, reports and communications shall be submitted to the Agreements Officer and Administrative Agreements Officer.

H. Preference for American Industry

Notwithstanding any other provision of this Article, the Performer agrees that it shall not grant to any person the exclusive right to use or sell any subject invention in the United States unless such person agrees that any product embodying the subject invention or produced through the use of the subject invention shall be manufactured substantially in the United States. However, in individual cases, the requirements for such an agreement may be waived by DARPA upon a showing by the Performer that reasonable but unsuccessful efforts have been made to grant licenses on similar terms to potential licensees that would be likely to manufacture substantially in the United States or that, under the circumstances, domestic manufacture is not commercially feasible.

I. March-in Rights

The Performer agrees that, with respect to any subject invention in which it has retained title, DARPA has the right to require the Performer, an assignee, or exclusive licensee of a subject invention to grant a non-exclusive license to a responsible applicant or applicants, upon terms that are reasonable under the

circumstances, and if the Performer, assignee, or exclusive licensee refuses such a request, DARPA has the right to grant such a license itself if DARPA determines that:

1. Such action is necessary because the Performer or assignee has not taken effective steps, consistent with the intent of this Agreement, to achieve practical application of the subject invention;
2. Such action is necessary to alleviate health or safety needs which are not reasonably satisfied by the Performer, assignee, or their licensees;
3. Such action is necessary to meet requirements for public use and such requirements are not reasonably satisfied by the Performer, assignee, or licensees; or
4. Such action is necessary because the agreement required by Paragraph H of this Article has not been obtained or waived or because a licensee of the exclusive right to use or sell any subject invention in the United States is in breach of such Agreement.

ARTICLE 8: DATA RIGHTS

A. Allocation of Principal Rights

1. The Parties agree that in consideration for Government funding, the Performer intends to reduce to practical application items, components and processes developed under this Agreement.
2. With respect to the Algorithms and Data developed or generated under this Agreement related to the program, the Government shall receive GOVERNMENT PURPOSE RIGHTS, as defined in Article 1, Paragraph B.
3. With respect to the Algorithms and Data delivered pursuant to Attachment 2 under the Agreement, the Government shall receive GOVERNMENT PURPOSE RIGHTS. Notwithstanding the provision in A.4, the performer agrees, with respect to the algorithms and data generated or developed under this Agreement, the Government may, within 3 years after completion or termination of this Agreement, require delivery of the algorithms and data and receive UNLIMITED RIGHTS.
4. March-In Rights
 - a. In the event the Government chooses to exercise its March-in Rights, as defined in Article 7, Paragraph 1 of this Agreement, the Performer agrees, upon written request from the Government, to deliver at no additional cost to the Government, all Data necessary to achieve practical application within sixty (60) calendar days from the date of the written request. The Government shall retain Unlimited Rights, as defined in Article 1, Paragraph B of this Agreement, to this delivered Data.
 - b. To facilitate any potential deliveries, the Performer agrees to retain and maintain in good condition until 3 (three) years after completion or termination of this Agreement, all Data necessary to achieve practical application of any subject invention as defined in Article 1, Paragraph B of this Agreement.

B. Marking of Data

Pursuant to Paragraph B above, any Data delivered under this Agreement shall be marked with the following legend:

Use, duplication, or disclosure is subject to the restrictions as stated in Agreement **HR0011-XX-3-XXXX** between the Government and the Performer.

C. Lower Tier Agreements

The Performer shall include this Article, suitably modified to identify the Parties, in all subcontracts or lower tier agreements, regardless of tier, for experimental, developmental, or research work.

ARTICLE 9: FOREIGN ACCESS TO TECHNOLOGY

This Article shall remain in effect during the term of the Agreement and for 3 (three) years thereafter.

A. General

The Parties agree that research findings and technology developments arising under this Agreement may constitute a significant enhancement to the national defense, and to the economic vitality of the United States. Accordingly, access to important technology developments under this Agreement by Foreign Firms or Institutions must be carefully controlled. The controls contemplated in this Article are in addition to, and are not intended to change or supersede, the provisions of the International Traffic in Arms Regulations (22 C.F.R. Part 120, et seq.), National Industrial Security Program Operating Manual (NISPOM) (32 C.F.R. Part 117, et seq.), and the Department of Commerce's Export Administration Regulations (15 C.F.R. Part 730, et seq.).

B. Restrictions on Sale or Transfer of Technology to Foreign Firms or Institutions

1. In order to promote the national security interests of the United States and to effectuate the policies that underlie the regulations cited above, the procedures stated in Subparagraphs C.2, C.3, and C.4 below shall apply to any transfer of technology. For purposes of this paragraph, a transfer includes a sale of the company, and sales or licensing of technology. Transfers do not include:
 - a. sales of products or components, or
 - b. licenses of software or documentation related to sales of products or components, or
 - c. transfer to foreign subsidiaries of the Performer for purposes related to this Agreement, or
 - d. transfer which provides access to technology to a Foreign Firm or Institution which is an approved source of supply or source for the conduct of research under this Agreement provided that such transfer shall be limited to that necessary to allow the firm or institution to perform its approved role under this Agreement.
2. The Performer shall provide timely notice to DARPA of any proposed transfers from the Performer of technology developed under this Agreement to Foreign Firms or Institutions. If DARPA determines that the transfer may have adverse consequences to the national security interests of the United States, the Performer, its vendors, and DARPA shall jointly endeavor to find alternatives to the proposed transfer which obviate or mitigate potential adverse consequences of the transfer, but which provide substantially equivalent benefits to the Performer.

3. In any event, the Performer shall provide written notice to the DARPA AOR and AO of any proposed transfer to a Foreign Firm or Institution at least sixty (60) calendar days prior to the proposed date of transfer. Such notice shall cite this Article and shall state specifically what is to be transferred and the general terms of the transfer. Within thirty (30) calendar days of receipt of the Performer's written notification, the DARPA AO shall advise the Performer whether it consents to the proposed transfer. In cases where DARPA does not concur or sixty (60) calendar days after receipt and DARPA provides no decision, the Performer may utilize the procedures under Article 6, Disputes. No transfer shall take place until a decision is rendered.
4. In the event a transfer of technology to Foreign Firms or Institutions which is NOT approved by DARPA takes place, the Performer shall (a) refund to DARPA funds paid for the development of the Technology and (b) the Government shall have a non-exclusive, nontransferable, irrevocable, paid-up license to practice or have practiced on behalf of the United States the technology throughout the world for Government an any and all other purposes, particularly to effectuate the intent of this Agreement. Upon request of the Government, the Performer shall provide written confirmation of such licenses.

C. Lower Tier Agreements

The Performer shall include this Article, suitably modified, to identify the Parties, in all subcontracts or lower tier agreements, regardless of tier, for experimental, developmental, or research work.

ARTICLE 10: SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING

The research under this Agreement is intended to be fundamental research. As such, the requirements of Article 10 do not apply. Should the research scope under the Agreement change and the Performer will be required to receive, develop, collect, transmit, use, or store CDI, the requirements of this Article will apply to the Agreement. For purposes of clarification, any such change in the research scope which would implicate the requirements of this Article 10 shall be documented in a bilateral modification to the Agreement signed by authorized representatives of the Parties and made in accordance with the procedures outlined in Article 3(C)(4).

A. Background

Protection of Covered Defense Information (CDI), to include Controlled Unclassified Information (CUI) and Controlled Technical Information (CTI), is of paramount importance to DARPA and can directly impact the ability of DARPA to successfully conduct its mission. Therefore, this Article requires the performer to protect CDI that resides on the performer's information systems. This Article also requires the performer to rapidly report any cyber incident involving CDI.

B. Safeguarding CDI

The Performer shall implement the version of NIST Special Publication (SP) 800-171 in effect at the time the solicitation is issued or as authorized by the Agreements Officer for CUI and CTI that resides on the performer's information systems. Consistent with NIST SP 800-171, implementation may be tailored to facilitate equivalent safeguarding measures used in the performer systems and organization. Any suspected loss or compromise of CDI that resides on the performer's information systems shall be considered a cyber incident and require the performer to rapidly report the incident to DARPA in accordance with Paragraph C below.

C. Cyber Incident Reporting

Upon discovery of a cyber incident involving CUI or CTI, the Performer shall take immediate steps to mitigate any further loss or compromise. The Performer shall rapidly report the incident to DARPA and provide sufficient details of the event—including identification of detected and isolated malicious software—to enable DARPA to assess the situation and provide feedback to the performer regarding further reporting and potential mitigation actions. The Performer shall preserve and protect images of all known affected information systems and all relevant monitoring/packet capture data for at least ninety (90) days from reporting the cyber incident to enable DARPA to assess the cyber incident. The Performer agrees to rapidly implement security measures as recommended by DARPA and to provide to DARPA any additionally requested information to help the Parties resolve the cyber incident and to prevent future cyber incidents.

D. Public Release

All information and data covered by this Article must be reviewed and approved by DARPA prior to any public release. The DARPA public release process is governed by DARPA Instruction 65. An online form is available to support those requests at: <https://www.darpa.mil/work-with-us/contract-management/public-release>.

E. Lower Tier Agreements

The Performer shall include this Article in all subcontracts or lower tier agreements, regardless of tier, for work performed in support of this Agreement.

F. Definitions

Compromise: Disclosure of information to unauthorized persons, or a violation of the security policy of a system, in which unauthorized intentional or unintentional disclosure, modification, destruction, or loss of an object, or the copying of information to unauthorized media may have occurred.

Covered Contractor Information System: Unclassified information system that is owned, or operated by or for, a contractor and that processes, stores, or transmits covered defense information.

Covered Defense Information (CDI): Unclassified controlled technical information or other information, as described in the Controlled Unclassified Information (CUI) Registry at <http://www.archives.gov/cui/registry/category-list.html>, that requires safeguarding or dissemination controls pursuant to and consistent with law, regulations, and Government-wide policies, and is (1) Marked or otherwise identified in the agreement, task order, or delivery order and provided to the performer by or on behalf of DoD in support of the performance of the agreement; or (2) Collected, developed, received, transmitted, used, or stored by or on behalf of the performer in support of the performance of the agreement.

Controlled Technical Information (CTI): Technical information with military or space application that is subject to controls on the access, use, reproduction, modification, performance, display, release, disclosure, or dissemination. Controlled technical information would meet the criteria, if disseminated, for distribution statements B through F using the criteria set forth in DoD Instruction 5230.24, Distribution Statements on Technical Documents.

Controlled Unclassified Information (CUI): Unclassified information that requires safeguarding or dissemination controls, pursuant to and consistent with applicable law, regulations, and Government-wide

policies. Instructions for the use, marking, dissemination, and storage of CUI can be found in DoD Instruction 5200.48, “Controlled Unclassified Information (CUI).”

Cyber Incident: Actions taken through the use of computer networks that result in a compromise or an actual or potentially adverse effect on an information system and/or the information residing therein.

Information System: A discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

Rapidly Report: Report to DARPA within seventy-two (72) hours of discovery of any cyber incident.

ARTICLE 11: TITLE TO AND DISPOSITION OF PROPERTY

A. Title to Property (USE IF PERFORMER WILL NOT BE ACQUIRING PROPERTY VALUED AT MORE THAN \$10,000)

No significant items of property are expected to be acquired under this Agreement. Title to each item of property acquired under this Agreement with an acquisition value of \$10,000 or less shall vest in the Performer upon acquisition with no further obligation of the Parties unless otherwise determined by the AO. Should any item of property with an acquisition value greater than \$10,000 be required, the Performer shall obtain prior written approval of the AO. Title to this property shall also vest in the Performer upon acquisition. The Performer shall be responsible for the maintenance, repair, protection, and preservation of all property at its own expense.

OR

A. Title to Property (USE IF PERFORMER WILL BE ACQUIRING PROPERTY VALUED AT MORE THAN \$10,000)

The Performer will acquire property with an acquisition value greater than \$10,000 under this Agreement as set forth in Attachment 6 to this Agreement which is necessary to further the research and development goals of this Program and is not for the direct benefit of the Government. Title to this property shall vest in the Performer upon acquisition. Title to any other items of property acquired under this Agreement with an acquisition value of \$10,000 or less shall vest in the Performer upon acquisition with no further obligation of the Parties unless otherwise determined by the AO. Should any other item of property with an acquisition value greater than \$10,000 be required, the Performer shall obtain prior written approval of the AO. Title to this property shall also vest in the Performer upon acquisition. The Performer shall be responsible for the maintenance, repair, protection, and preservation of all property at its own expense.

B. Disposition of Property

At the completion of the term of this Agreement, items of property set forth in Attachment 6 or any other items of property with an acquisition value greater than \$10,000 shall be disposed of in the following manner:

1. Purchased by the Performer at an agreed-upon price, the price to represent fair market value, with the proceeds of the sale being returned to DARPA; or
2. Transferred to a Government research facility with title and ownership being transferred to the Government; or

3. Donated to a mutually agreed University or technical learning center for research purposes; or
4. Any other DARPA-approved disposition procedure.

ARTICLE 12: CIVIL RIGHTS ACT

This Agreement is subject to the compliance requirements of Title VI of the Civil Rights Act of 1964 as amended (42 U.S.C. § 2000d) relating to nondiscrimination in Federally assisted programs. The Performer has signed an Assurance of Compliance with the nondiscriminatory provisions of the Act.

ARTICLE 13: EXECUTION

This Agreement constitutes the entire agreement of the Parties and supersedes all prior and contemporaneous agreements, understandings, negotiations and discussions among the Parties, whether oral or written, with respect to the subject matter hereof. This Agreement may be revised only by written consent of the Performer and the DARPA AO. This Agreement, or modifications thereto, may be executed in counterparts each of which shall be deemed as original, but all of which taken together shall constitute one and the same instrument.

ARTICLE 14: PROHIBITION ON CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT

A. Definitions

Covered Foreign Country: The People's Republic of China.

Covered Telecommunications Equipment or Services:

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) Video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of the National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a Covered Foreign Country.

Critical Technology:

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to Section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

B. Prohibition

In accordance with Public Law 115-232, Section 889 (b), the Performer is prohibited from obligating or expending funds received by the Government under this Agreement to:

1. Procure or obtain;
2. Extend or renew a contract to procure or obtain; or
3. Enter into a contract (or extend or renew a contract) to procure or obtain equipment, services, or systems that uses Covered Telecommunications Equipment or Services as a substantial component of any system, or as Critical Technology as part of any system.

C. Lower Tier Agreements

The Performer shall include this Article, suitably modified, in all subcontracts or lower tier agreements.

ARTICLE XX: PUBLIC RELEASE OR DISSEMINATION OF INFORMATION

1. At this time, DARPA expects the work performed under this agreement to be fundamental research, and it is, therefore, not subject to publication restrictions. Papers resulting from unclassified contracted fundamental research are exempt from prepublication controls and requirements, pursuant to DoD Instruction 5230.27 dated November 18, 2016.
2. Papers resulting from this agreement will include the following distribution statement: “Approved for public release; distribution is unlimited.”
3. Should the character of the research change during award performance so that the research is no longer considered fundamental, the agreement will be modified to impose the restrictions on public release and dissemination of information that apply to those research efforts that are not considered

fundamental research.

4. Acknowledgment of Support and Disclaimer: The Performer shall include an acknowledgment of the Government's support in the publication of any material based on or developed under this Agreement, stated in the following terms: This material is based upon work supported by the Defense Advanced Research Projects Agency (DARPA) under Agreement No. **HR0011-XX-XXXX**.

OR

A. Prohibition

There shall be no dissemination or publication, except within and between the Performer and any subcontractors, of information developed under this Agreement or contained in the reports to be furnished pursuant to this Agreement without prior written approval of the AOR. All technical reports will be given proper review by appropriate authority to determine which Distribution Statement is to be applied prior to the initial distribution of these reports by the Performer. Unclassified patent related documents are exempt from prepublication controls and this review requirement. There shall be no dissemination or publication, except within and between the Performer and any subcontractor(s), of information developed under this effort without first obtaining approval for public release from the DARPA Public Release Center (PRC). Papers prepared in response to academic requirements which are not intended for public release outside the academic institution are exempt from prepublication controls.

B. Public Release

The Performer shall submit all proposed public releases for review and approval as instructed at <http://www.darpa.mil/work-with-us/contract-management/public-release>. Public releases include press releases, specific publicity or advertisement, and publication or presentation, but exclude those relating to the open sourcing or licensing, sales or other commercial exploitation of products, services or technologies. In addition, articles for publication or presentation will contain a statement on the title page worded substantially as follows:

This research was, in part, funded by the U.S. Government. The views and conclusions contained in this document are those of the authors and should not be interpreted as representing the official policies, either expressed or implied, of the U.S. Government.

**ATTACHMENT 1:
TASK DESCRIPTION DOCUMENT**

**Insert Task Description Document from Attachment H of the solicitation
DARPA-PA-26-05.**

SAMPLE

ATTACHMENT 2: REPORT REQUIREMENTS

This agreement will utilize the DARPA VAULT website for electronically uploading **all required reports listed below and data deliverables in Attachment 3, Schedule of Milestones and Payments**. It can be accessed at: <https://vault.darpa.mil/>.

New users must be registered prior to using the website. The registration process will be initiated by the DARPA help desk, who will email the performer's contracting point of contact via email. Once registration has been completed, system related questions/issues can be addressed by referring to the Vault User's Manual available on the website. Additional assistance can be obtained by contacting action@darpa.mil.

The Vault is an enterprise system that will provide a means for performers to more easily report contractually required technical and financial information. The system is a centralized location for DARPA staff and agents to access performer deliverables.

The Performer shall notify the DARPA Program Manager's Business Financial Manager (BFM) in writing should a Vault POC need to be removed or additional personnel added.

The Performer shall obtain distribution marking and CUI marking instructions from either the CUI Guide attached to this Agreement or from the DARPA Program Manager.

A. REPORTS

On or before ninety (90) calendar days after the effective date of the Agreement and thereafter throughout the term of the Agreement, the Performer shall submit or otherwise provide a report. One (1) copy shall be submitted or otherwise provided to the DARPA PM, one (1) copy shall be submitted or otherwise provided to the DARPA AO, one (1) copy shall be submitted or otherwise provided to DARPA AOR, and one (1) copy shall be digitally uploaded into the DARPA Vault tool. The report will have two (2) major sections.

1. Technical Status Report. The technical status report will detail technical progress to date and report on all problems, technical issues, major developments, and the status of external collaborations during the reporting period.

2. Business Status Report. The business status report shall provide summarized details of the resource status of this Agreement, including the status of the Performer contributions. This report will include an accounting of current expenditures. Any major deviations, over plus or minus 10%, shall be explained along with discussions of the adjustment actions proposed. The report will also include an accounting of any interest earned on Government funds. The Performer is reminded that interest in amounts greater than one thousand dollars (\$1,000.00) per year is not expected to accrue under this Agreement. In the event that this interest does accrue on Government funds, the Performer is required to provide an explanation for the accrual in the business report. Depending on the circumstances, the Payable Milestones may require adjustment.

B. DATA MANAGEMENT PLAN

(NOTE: This is a one-time submittal due NLT thirty (30) days after award)

1. A Data Management Plan (DMP) is required for science and technology programs consisting of basic research, applied research, and advanced technology development programs. DMP is

a document that describes which data generated through the course of the proposed research will be shared and preserved and how it will be done. It may explain why data sharing or preservation is not possible or scientifically appropriate, or why the costs of sharing or preservation are incommensurate with the value of doing so. The DMP may be in the Performer's format but shall conform at a minimum to the outline of Section 3.c of Enclosure 3 of Department of Defense Instruction (DoDI) 3200.12, "DoD Scientific and Technical Information Program (STIP)." DoDI 3200.12 is available at the Washington Headquarters Services, Executive Services Directorate website: <https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodi/320012p.pdf?ver=2018-12-17-130508-423>.

2. The Performer shall submit an electronic copy of their DMP no later than thirty (30) calendar days after award of this Agreement to the DARPA AOR, DARPA PM, DARPA AO, and digitally uploaded to the DARPA Vault tool.

C. ANNUAL PROGRAM PLAN DOCUMENT

The Performer shall submit or otherwise provide to the DARPA AOR, DARPA PM, and DARPA AO, one (1) copy each of a report which describes the Annual Program Plan as described in Article 3, Paragraph B.

D. SPECIAL TECHNICAL REPORTS

As agreed to by the Performer and the DARPA AOR, the Performer shall submit special technical reports on significant events such as significant target accomplishments by the Performer, significant tests, experiments, or symposia.

Email submissions are encouraged and may be password protected if deemed necessary.

E. MILESTONE REPORTS

The Performer shall submit documentation describing the extent of the accomplishment of Attachment 3, Schedule of Milestones and Payments. This information shall be as required by Article 5, Subparagraph B.3 and shall be sufficient for the DARPA AOR to reasonably verify the accomplishment of the milestone in accordance with the TDD.

F. FINAL REPORT

(NOTE: The Final Report is included in the last Payable Milestone for the completed Agreement.)

The Performer shall submit or otherwise provide a Final Report making full disclosure of all major developments by the Performer upon completion of the Agreement or within sixty (60) calendar days of termination of this Agreement. One (1) copy shall be uploaded to the DARPA Vault; and one (1) copy shall be submitted or otherwise provided to:

1. The DARPA Closeout team at CMO_closeout@darpa.mil; and
2. The Defense Technical Information Center (DTIC), Attn: DTIC-BCS, 8725 John J. Kingman Road, Suite 0944, Fort Belvoir, VA 22060-0944. Information regarding submission to DTIC, including electronic submission, is provided at <https://www.dtic.mil/dtic/submit/submit.html>.

G. EXECUTIVE SUMMARY

The Performer shall submit a one-to-two-page executive-level summary of the major accomplishments of the Agreement and the benefits of using the other transactions authority pursuant to 10 U.S.C. § 4021 upon completion of the Agreement. This summary shall include a discussion of the actual or planned benefits of the technologies for both the military and commercial sectors.

H. PATENT AND INVENTION DISCLOSURE AND REPORTING

See Article 7.

For all reports/communications not submitted via I-Edison, email submission is encouraged and may be password protected if deemed necessary.

Note: The above data deliverables shall also be marked per Article 8, as applicable.

I. Property Report

See Article 11.

The Performer shall submit a report identifying all items of property procured with an acquisition value greater than \$10,000 upon completion of the Agreement.

ATTACHMENT 3

SCHEDULE OF MILESTONES AND PAYMENTS

NOTE: Please fill out [Schedule of Milestones and Payment Excel Spread Sheet](#), information will be incorporated into award

Helpful notes for Milestones:

- Each milestone will mark the completion of a measurable event (i.e., completing a baseline execution plan, completing measurable events in the performance of the research and development of the technology, completing and submitting the final report, etc.).
- Deliverable narrative should provide description of what is being delivered, the word “Report” is not sufficient. **“Status/Progress/Reports” cannot be milestones.**
- The milestone description will show how the milestone will be demonstrably completed.
- Payments associated with each milestone must reflect the actual comprehensive costs to achieve milestone completion. **(Note do not take total cost and divide by number of milestones)**
- Although this is a R&D effort the amounts against each milestone should NOT be the same. consider what actually goes into the pricing of that particular milestone as each milestone should have its own cost. (If amounts remain the same, please clearly expand the deliverable description)
- The milestones need to be more definitive and consider what actually goes into the pricing of that particular milestone.
- The milestone description will show how the milestone will be demonstrably completed.

Three Milestone Examples:

- Kickoff Meeting presentation including project design, acquisition of equipment, and overall workflow leading to accomplishment of deliverables. Kickoff briefing package will include team organization, technical approach and research goals, expected results and schedule, and risk and mitigation strategies
- Kick-off meeting presentation with description of proposed effort to include the description of proposed concept, focus area and potential application domain; Justification of proposed approach based on preliminary analyses or modeling; Justification of the benefits of the proposed scheme in achieving beyond-XXX performance in the potential application domain; Description and preliminary analyses of the proposed concept metrics that will be achieved during the period of performance, and comparison of these metrics to the current XXX. All supporting positions identified in the proposal are assigned to personnel, and names are provided to the Government. Order materials and equipment.
- Design XXXX molecule candidate(s) and investigate simulated molecular conformation changes induced by the onset and offset of near infrared (NIR) light in the range of 750 nm to 900 nm, as well as simulated binding to target protein(s) of interest in the presence of NIR light. METRIC: XXXX candidates demonstrate molecular conformation change in the presence of NIR light in the range of XXX to XXX nm, and bind to target protein(s) of interest in the presence of NIR light in a simulated environment.

Two Exit Criteria Examples:

- Submit kickoff meeting charts and Initial Test Plan
- Submit Milestone report describing design approach and molecular structure(s) of XXXX and simulation results.

ATTACHMENT 4:
AGREEMENT OFFICER'S REPRESENTATIVE
(INSERT IMAGES OF AOR APPOINTMENT MEMO HERE)

SAMPLE

ATTACHMENT 5:
CERTIFICATIONS FOR AGREEMENT NO. **HR0011XX3XXXX**

1. The undersigned listed on **page 1** of this Agreement certifies, to the best of his or her knowledge and belief, that this institution, organization, and its principals:

- (a) Pursuant to E.O. 12549 and implementing rule, are not presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from covered transactions by any Federal department or agency
- (b) Pursuant to the Anti-Drug Abuse Act of 1988, Pub. L. 100-690, will provide a drug-free workplace. The place of performance is:

<u>2361 E 5th Ave</u>	<u>Port Angeles, Clallam County, WA</u>	<u>98362</u>
(Street Address)	(City, County, State)	(Zip Code)

- (c) Are in compliance with the provisions of DoD Directive 5500.11 “Nondiscrimination in Federally Assisted Programs,” which implements Title VI of the Civil Rights Act of 1964.

2. The following certification applies only to actions exceeding \$100,000.00:

- (a) Per 31 U.S.C. § 1352, “Limitation on use of appropriated funds to influence certain Federal contracting and financial transactions.”

- (1) No Federal appropriated funds have been paid or will be paid by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an Officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, cooperative agreement, or other transaction.

- (2) If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the Federal contract, grant, loan, cooperative agreement, or other transaction, the undersigned shall complete and submit Standard Form LLL, “Disclosure Form to Report Lobbying,” in accordance with its instructions.

- (3) The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, cooperative agreements, and other transactions) and that all subrecipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when you transaction was made or entered into. Submission of this certification is a prerequisite for making or entering this transaction imposed by 31 U.S.C. § 1352. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000.00 and not more than \$100,000.00 for each such failure.

3. Representation by corporations regarding an unpaid delinquent tax liability or a felony conviction under any Federal law.

(a) In accordance with Section 101(a) of the Continuing Appropriations Act, 2016, Pub. L. 114-53, and any subsequent FY2016 appropriations act that extends to FY2016 funds the same restrictions as are contained in Sections 744 and 745 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), none of the funds made available by this or any other Act may be used to enter into a contract with any corporation that—

- (1)** Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless the agency has considered suspension or debarment of the corporation and made a determination that is further action is not necessary to protect the interests of the Government; or
- (2)** Was convicted of a felony criminal violation under any Federal law within the preceding twenty-four (24) months, where the awarding agency is aware of the conviction, unless the agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that— **(CHECK BOXES THAT APPLY)**

- (1)** It is ☐ is not ☒ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to agreement with the authority responsible for collecting the tax liability.
- (2)** It is ☐ is not ☒ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding twenty-four (24) months.

ATTACHMENT 6: PROPERTY/EQUIPMENT

Below is a list of equipment proposed to be purchased by the Performer with an acquisition value of greater than \$10,000. Title to and Disposition of Property under this Agreement will be handled in accordance with the terms and conditions of Article 11.

Item Description	Unit Price	Quantity	Total Projected Cost
	\$		\$
	\$		\$
	\$		\$

ATTACHMENT **X** INTELLECTUAL PROPERTY ASSERTIONS

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data and Computer Software

Technical Data or Computer Software to be Furnished With Restrictions	Summary of Intended Use in the Conduct of the Research	Basis for Assertion	Asserted Rights Category	Name of Person / Organization Asserting Restrictions